

23STCV26600 23STCV26600

County: los-angeles

Division: Civil Law and Motion

Department: 730

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Case Number: 23STCV26600 Hearing Date: August 5, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BENJAMIN

MUESSIG,

Plaintiff,

vs.

GENERAL

MOTORS, LLC,

Defendant.

Case

No.:

23STCV26600

Hearing

Date:

August 5, 2026

ORDER

DENYING MOTION FOR ATTORNEY FEES

I. BACKGROUND

Plaintiff Benjamin Muessig

("Muessig") entered into a warranty contract with Defendant General Motors, LLC ("GM") regarding a 2020 Chevrolet Bolt EV ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities making the car effectively worthless. GM allegedly failed to reasonably repair or reimburse Muessig for the vehicle. Muessig sued GM for four causes of action, including breach of the implied warranty.

On October 10, 2025, the Court entered dismissal as to the entire action, pursuant to the parties' settlement agreement.

On April 1, 2026, Muessig filed the instant motion for attorney fees. GM filed an opposition. Muessig filed a reply brief.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code of Civil Procedure § 1033.5, subd. (a)(10)(B).) Civil Code section 1717 states that "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. (Civ. Code, § 1717, subd. (a).) The term "on a contract" is liberally construed to include any action that "involves" a contract. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 894.) "To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action." (Brown Bark III, L.P. v. Haver (2013) 219 Cal.App.4th 809, 821.) "[F]ees are properly awarded under

section 1717 'to the extent that the action in fact is an action to enforce—or avoid enforcement of—the specific contract.'" (Turner v. Schultz (2009) 175 Cal.App.4th 974, 980.) The prevailing party on the contract is "the party who recovered greater relief in the action on the contract." (Civ. Code, § 1717, subd. (b)(1).)

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (§ 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Ibid.)

A party's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

IV. DISCUSSION

The Court denies Muessig's motion for attorney fees, as it is untimely.

Pursuant to California

Rules of Court rule 3.1702, subdivision (a),^[1]

a notice of motion for attorney's fees must be served and filed within the time for filing a notice of appeal under rule 8.104. Rule 8.104 outlines notice must be filed on or before the earliest of the following: 1) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served; 2) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or 3) 180 days after entry of judgment. (Rule 8.104, subd. (a)(1).)

For purposes of the

California Rules of Court, an entry of judgment equates to a dismissal. (Sanabria v. Embrey (2001) 92 Cal.App.4th 424, 427.) Therefore, any notice of dismissal or filed-endorsed copy of the judgment, serve on or by Muessig, triggers the running of the time period to file.

The Court's record reflects

Muessig's counsel was served with a filed-endorsed copy of the judgment by a superior court clerk on October 10, 2025. (See 10/10/2025 Order- Dismissal.) Therefore, the deadline to file this motion was, at the latest, 60 days after October 10, 2025, or December 9, 2025. As this motion was not filed until April 1, 2026, this motion is untimely. Therefore, the Court denies the motion.

V. CONCLUSION

Plaintiff Benjamin Muessig's motion for attorney fees is DENIED.

GM is ordered to give notice.

DATED:

August 4, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

references are to the California Rules of Court.